

		Defendant makes other arguments that should go to the merits of the case, and not the pleading (such as, whether it is immune, whether Pena had discretion in his conduct, whether Pena was acting in the course and scope of his employment.) Given that all causes of action have identified a statutory basis for government tort liability, Defendant is on notice of the claims pled against it. Defendant to file an Answer within 20 days. Plaintiff to give notice. 2. Case Management Conference
102	Trebunskaya vs. Gaugh 25-01481490	Motion to Set Aside/Vacate Default Defendants Kenneth Gaugh, Domenic J. Trutanich and Domenic J. Trutanich & Associates seek an order setting aside the defaults entered against them on 8/19/25 by Plaintiff Irina Trebunskaya. Code of Civil Procedure §473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” “Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (CCP §473(b).) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233; see Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 696.) Thus, where the party in default moves promptly to seek relief, and no prejudice to the

		opposing party will result from setting aside the default and letting the case go to trial on the merits, “very slight evidence will be required to justify a court in setting aside the default.” (Elston at 233 (internal quotes omitted); Fasuyi at 696.) “Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails.” (Elston at 235.) Here, Defendants presented evidence that they were in discussions with Plaintiff’s counsel regarding the appropriate venue for this action when their defaults were taken. (Gauth Decl. ¶¶2-3.) Plaintiff’s counsel ultimately agreed that venue is not proper in Orange County. (Id. at ¶ 4.) Counsel for Plaintiff and counsel for Defendants have each submitted stipulations to the Court which seek to vacate the defaults and transfer venue to Los Angeles County Superior Court; however, both stipulations have been rejected by the clerk due to formatting issues. (Id. at ¶¶ 4-5.) The motion was filed within six months of the defaults, and Defendants have submitted a proposed Answer with their motion. Accordingly, the motion to set aside defaults is GRANTED. Defendant shall file their Answer within 10 days. Moving party to give notice.
103	Im vs. Ken Hotels & Resorts Holdings LTD 25-01481737	Motion to Strike Portions of Complaint Defendant Ken Hotels & Resorts Holdings, Ltd. (“Defendant”) moves to strike the claims for punitive damages, attorney fees, and injunctive relief/abatement set forth in plaintiffs Jonathan Im, Angel Dimas, Genesis Camarena, and Alexis Lima’s (“Plaintiffs”) Complaint. The Court may, on motion by a party, strike out any irrelevant, false, or improper matter inserted in any